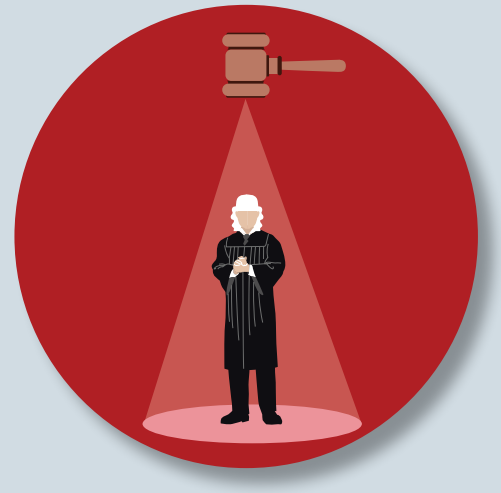
damningly, they concluded that access to this room was under the 'covert or active control of Justice Varma and his family members'. Through what they termed 'strong inferential evidence', they determined that Varma's most trusted staff, private secretary Rajinder Singh Karki and domestic helpers, had removed the burnt cash in the early hours of March 15.

Karki allegedly instructed firefighters not to mention currency in their reports. The storeroom was cleaned the next day, destroying potential evidence. When questioned, household staff claimed ignorance but the committee found these denials unconvincing when weighed against the independent testimony of fire and police personnel.

Most significantly, the committee addressed Justice Varma's defence, or lack thereof. His claim that the storeroom was accessible to outsiders was contradicted by security personnel who testified that the area was always locked and monitored. His failure to report a conspiracy, if he truly believed one existed, struck the committee as inexplicable.

On the other side, Justice Varma's objections went beyond mere procedure. The committee, he noted, had already framed its inquiry around three presumptive questions: How does he account for the money in the room? What was its source? Who removed it? These questions, Varma argued, assumed that the money he claimed never belonged to him was his. Also, the committee's fact-finding mandate meant it operated without the safeguards of a proper judicial inquiry, no examination of witnesses on oath, no rules of evidence, no formal procedures to check the testimony's veracity.



Illustrations by RAJ VERMA

GUILTY AS CHARGED?

Why the CJI-appointed inquiry panel found Justice Varma guilty

➘ **Panel took stock of 55 witness** testimonies, forensic examination of videos/ photos, as well as triangulation of electronic and call records to come to its findings

➘ **Multiple visuals of charred currency retrieved.** In one video, a fire officer is heard saying, "Mahatma

QUESTIONS OVER THE INVESTIGATION

When CJI Khanna, acting on the committee's report, advised Varma to resign within 48 hours, the judge's response was unequivocal. His letter of June 6 rejecting this advice struck notes of both defiance and despair. "To accept such advice would imply my acquiescence to a process and outcome that I respectfully consider to be fundamentally unjust," he wrote.

Perhaps nothing illustrates the case's irregularities more starkly than what investigators chose not to investigate. Former law minister Kapil Sibal, reviewing the case, identifies gaps that seem less like oversights and more deliberate omissions. No forensic examination determined the fire's cause. Justice Varma's claim of an explosion was dismissed without investigation. The CCTV cameras monitoring the storeroom, potentially the most crucial evidence, had mysteriously stopped working, their data irretrievably lost by the time investigators sought it. The committee noted this failure but drew no adverse inference, instead blaming Justice Varma for not preserving footage even though he had 10 days to do so and prove his innocence.

The Delhi Police's conduct raised even more questions. Here were law enforcement officers witnessing evidence of a serious crime, yet they took no action. When questioned later, the officers claimed that they were told by superiors that "higher-ups are involved" and they should take no further action. This investigative paralysis extended to the committee itself. While acknowledging police conduct as "slipshod", they declined to probe deeper, stating it was "not part of their remit". They made no attempt to trace where the cash originated, whether it was genuine or counterfeit, or how it came to be in the storeroom. The amount itself remained a matter of speculation; media reports suggested Rs 15 crore, but no official count was ever made.

THE IMPEACHMENT PUZZLE

As Parliament prepares for Justice Varma's impeachment, the process itself has become contentious. Under the Judges (Inquiry) Act, 1968, impeachment follows a prescribed route: MPs submit a motion, the speaker or chairman admits it, a three-judge panel investigates, and only if found guilty does Parliament debate and vote. This statutory process includes crucial safeguards, including right to legal representation and evidence taken on oath.

Yet minister Rijiju has suggested the government views this case as "slightly different", hinting they might bypass the statutory inquiry since an inhouse committee has already submitted a report. This approach has alarmed constitutional experts. As Indira Jaising, who participated